

- imported into the Isle of Man imposed by the second paragraph of section two of that Act, shall continue to be charged, levied, and paid as from the first day of August nineteen hundred and twelve until the first day of August nineteen hundred and thirteen.

2. This Act may be cited as the Isle of Man (Customs) Short title. Act, 1912.

CHAPTER 10.

An Act to make such provisions with respect to the prohibition of catching Seals and Sea Otters in certain parts of the Pacific Ocean, and for the enforcement of such prohibitions as are necessary to carry out a Convention between His Majesty the King and the United States of America, the Emperor of Japan, and the Emperor of All the Russias. [7th August 1912.]

WHEREAS a Convention has been entered into between His Majesty and the United States of America, the Emperor of Japan, and the Emperor of All the Russias with respect to the prohibition of pelagic sealing in certain parts of the Pacific Ocean, and it is desirable that such amendments of the law should be made as will enable effect to be given to that Convention :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The seas with respect to which an Order in Council may be made under the Seal Fisheries (North Pacific) Act, 1895, prohibiting the killing, taking, and hunting of seals therein shall include the seas within such part of the Pacific Ocean as is north of the thirtieth parallel of north latitude, including the seas of Behring, Kamchatka, Okhotsk and Japan, and accordingly that Act shall have effect as if in subsection (2) of section seven thereof for the words " within that part of the " Pacific Ocean known as Behring's Sea and within such other " parts of the Pacific Ocean as are north of the forty-second " parallel of north latitude " there were substituted the words " within such part of the Pacific Ocean as is north of the " thirtieth parallel of north latitude, including the seas of " Behring, Kamchatka, Okhotsk and Japan."

Extension of area within which pelagic sealing may be prohibited.
58 & 59 Vict. c. 21.

2. His Majesty in Council shall have the like power of making Orders in Council under the said Act as amended by this Act with respect to the killing, taking, and hunting of sea

Power to prohibit killing and hunting of sea otters.

otters within such part of the Pacific Ocean as aforesaid as with respect to the killing, taking, and hunting of seals, and that Act as so amended shall apply accordingly.

Prohibition of
using ports for
purposes of
pelagic sealing
contrary to
Order.

57 & 58 Vict.
c. 60.

3.—(1) If any person uses any port within the United Kingdom for the purpose of equipping any ship intended to be used or employed in killing, taking, or hunting seals in contravention of any such Order as aforesaid, he shall be guilty of an offence, and shall be liable to be dealt with as if such offence were an offence declared to be a misdemeanour by the Merchant Shipping Act, 1894, and the ship and her equipment and everything on board thereof shall be subject to forfeiture to His Majesty.

(2) If the Secretary of State is satisfied that there is reasonable cause for believing that a ship has been or is being equipped contrary to this section, the Secretary of State may authorise the Board of Trade, or any officer of the Board, to seize and detain the ship. Where such an authority is given, the ship may be seized and detained in like manner as if it were liable to seizure and detention under the Merchant Shipping Acts, 1894 to 1907.

(3) For the purposes of this section, “equipping” in relation to a ship shall include the furnishing of a ship with any tackle, apparel, furniture, provisions, munitions, fuel or stores, or any other thing which is used in or about a ship for the purpose of fitting or adapting her for the sea or for killing, taking, or hunting seals.

Prohibition of
importation of
skins of seals
captured in
contravention
of Order.

39 & 40 Vict.
c. 36.

4. Skins of seals taken in contravention of any such Order as aforesaid, and skins of seals identified as being of the species known as *Callorhinus alascanus*, *Callorhinus ursinus*, and *Callorhinus kurilensis*, and belonging to the American, Russian, or Japanese herds, except such as are taken under the authority of the respective Powers to which the breeding grounds of such herds belong and have been officially marked and certified as having been so taken, shall, subject to the provisions of this section, be deemed to be included in the table of prohibitions and restrictions contained in section forty-two of the Customs Consolidation Act, 1876, and that section shall apply accordingly.

Power to
extend certain
provisions
outside the
United King-
dom.

5.—(1) His Majesty may by Order in Council extend the provisions of the last two foregoing sections to any part of His Majesty's dominions outside the United Kingdom to any British protectorate and to Cyprus, subject to such modifications and adaptations as may appear to him to be necessary :

Provided that those provisions shall not be so extended to a self-governing dominion except with the consent of the Governor General in Council or Governor in Council of the dominion.

(2) For the purposes of this section, “self-governing dominion” means the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, and Newfoundland.

6. This Act may be cited as the Seal Fisheries (North Pacific) Act, 1912, and shall be construed with the Seal Fisheries (North Pacific) Act, 1895; and that Act and this Act may be cited together as the Seal Fisheries (North Pacific) Acts, 1895 and 1912. Short title and construction.

CHAPTER 11.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [7th August 1912.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely:— Grants for public works.

(a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of six million pounds:

(b) For the purpose of loans by the Commissioners of Public Works in Ireland, any sum or sums not exceeding in the whole the sum of six hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887. 50 & 51 Vict., c. 16.

2. Whereas it is expedient that the principal of the several local loans specified in the Schedule to this Act should, to the extent specified in the last column of that schedule, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887; therefore, the principal of the said loans shall to that extent be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto. Certain debts not to be reckoned as assets of local loans fund.